ARRANGEMENT OF SECTIONS

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IT is hereby notified that the Minister responsible for Local Government has, in terms of section 90 of the Rural District Councils Act [*Chapter 29:13*] approved the following by-laws:—

*Title*

1. These by-laws will be cited as the Insiza Rural District Council (Taxi-Cab) By-laws, 2025.

*Application*

2. These by-laws shall apply to the area under the jurisdiction of Insiza Rural District Council.

*Interpretation*

3. In these by-laws—

"council" means Insiza Rural District Council;

"taxi cab" means a public service vehicle having seating accommodation for not more than four passengers which ferries people for a fare.

*Taxi cabs plying for hire*

4. (1) No person shall—

(a) operate a taxi cab within Council area without an operators permit and such operators permit shall be issued upon payment of the prescribed fee and satisfaction of conditions set by Council;

(b) cause or permit a taxi cab to stop for the purpose of picking up or setting down passengers, at any place other than a designated place; or

(c) cause or permit passengers or goods to be picked up by, or set down from a taxi cab within seven metres of an intersection or corner.

(2) No taxi cab shall use a route within the Council area unless that route has been designated as a route for such purposes.

(3) No driver of a taxi shall prevent or seek to prevent any person from engaging any other taxi of their choice.

*Application and renewal of taxi operators permit*

5. (1) An application for a taxi cab operators permit shall be made to Council in the prescribed form upon payment of the prescribed application fee.

(2) An application for renewal of a taxi cab operators permit shall be made to Council in the prescribed form upon payment of the prescribed application fee.

*Cancellation of permit*

6. (1) Council shall cancel a permit if the holder thereof at any time after the issue of the permit has been convicted of any traffic offence in terms of the Insiza Rural District Council Traffic By-laws.

(2) Any permit cancelled in terms of this section shall be returned to the Council by the holder thereof within seven working days of such cancellation.

*Use of designated parking places*

7. (1) No taxi cab shall park at undesignated parking bays.

(2) In taking his or her stand upon a parking place which has been designated for the use of taxi-cab, the driver of a taxi-cab shall—

(a) take his or her stand in the order of his or her arrival; and

(b) stop his or her taxi cab behind the last taxi cab, if any, already on such parking place.

*Cleanliness and condition of taxi and appliances*

8. A duly authorised official of the council shall order the driver of any taxi/cab which is not in a clean and sanitary condition, or in every respect in a state of good repair, to cease from plying for hire until such defects have been remedied, to the satisfaction of Council.

*Conduct of drivers*

9. Every driver of a taxi shall be cleanly, decently clothed and shall conduct himself or herself in a proper, civil and decorous manner.

*Terms of permit*

10. A permit or renewal thereof shall terminate on the 31st of December of the year for which it is granted.

*Permit to be produced on demand*

11. (1) Every person licensed under these by-laws shall, while in control or charge of a taxi shall display the permit in a conspicuous position.

(2) A duly authorised official of the Council may at all reasonable times demand from any person in control or charge of a taxi the production of his or her permit, and such person shall comply with such demand forthwith.

*Drivers to wear badges*

12. (1) Every person licensed in terms of these by-laws shall, while in control or charge of a taxi cab, wear, in some conspicuous position on his or her person, the taxi cab drivers badge issued to him or her by the Council.

(2) The badge shall remain council property.

*Surrender of permit and badge*

13. Upon any licensed person ceasing to carry on the occupation of a taxi driver, or in the event of his or her permit being suspended or cancelled, he or she shall, within fourteen days of ceasing to carry on the occupation, or within fourteen days of the suspension or cancellation of his permit, surrender his or her permit and badge, and shall deliver them to the Council.

*Duplicate permit or badge*

14. On satisfying the Council that a badge has been lost or destroyed and on payment of the appropriate fees, Council shall issue a duplicate permit or taxi drivers badge bearing the number of the permit.

*Offences and penalties*

15. Any person who contravenes these by-laws shall be guilty of an offence and liable to—

(a) a fine specified in the Second Schedule; or

(b) impoundment of the vehicle used in committing the offence; or

(c) cancellation of their operating permit.

FIRST SCHEDULE

FEES

| Section | Description | Fee (USD) |
|---|---|---|
| 5 | Application fee to operate a taxi | $0,00 |
| 5 | Permit fee | $0,00 per quarter |
| 5 | Renewal fee of taxi operating licence | $0,00 |
| 12 | Taxi driver's badge fee | $0,00 |
| 14 | Replacement of a lost or destroyed badge or licence | $0,00 |

SECOND SCHEDULE

PENALTIES

| Section | Description of offence | Penalty (USD) |
|---|---|---|
| 7 | Plying for hire with such taxi from any place other than a parking place which has been designated for the use of taxis | $0,00 |
| 7 | Preventing or seeking to prevent any person from engaging any other taxi | $0,00 |
| 11 | Failure to display conspicuously within or upon his or her taxi cab a tariff of fares | $0,00 |
| 8 | Operating a filthy taxi | $0,00 |
| 4 | Operating a taxi without a council permit | $0,00 |
| 4 | Allowing any person who is not licenced under these by-laws to drive or to be in control of such taxi | $0,00 |
| 4 | Late renewal of taxi licence | $0,00 |
| 11 | Failure to produce a license upon request by an authorised person or officer whilst in control or charge of a taxi | $0,00 |
| 12 | Failure of taxi driver to wear a driver's badge whilst in control or charge of the taxi | $0,00 |

The fees or penalties and charges are payable at the prevailing interbank rate.